

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                                            |                                                       |                                    |                                 |
|--------------------------------------------------|-------------------------------------|--------------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Owen Godshall                   | Team:<br>Squad #04                  | CCRB Case #:<br>201503435                  | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                                            | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 04/30/2015 7:15 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>10/30/2016                   | Precinct:<br>79                                       |                                    |                                 |
| Date/Time CV Reported<br>Thu, 04/30/2015 5:00 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Thu, 04/30/2015 5:02 PM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. Officers               |        |        | 084 PCT |
| 2. DT2 Lawrence Hotaling  | 02671  | 897695 | 084 PCT |
| 3. LT Frank Jurs          | 00000  | 936833 | 084 PCT |
| 4. SDS David Cheesewright | 01990  | 913752 | INT CIS |
| 5. POM David Uriguen      | 05793  | 948151 | 084 PCT |

| Officer(s)                 | Allegation                                                                                   | Investigator Recommendation |
|----------------------------|----------------------------------------------------------------------------------------------|-----------------------------|
| A . Officers               | Abuse: Officers entered and searched § 87(2)(b) in Brooklyn.                                 | A . Exonerated              |
| B . DT2 Lawrence Hotaling  | Abuse: Det. Lawrence Hotaling refused to show a search warrant to § 87(2)(b)                 | B . Unsubstantiated         |
| C . POM David Uriguen      | Abuse: PO David Uriguen refused to provide his name to § 87(2)(b)                            | C . Unsubstantiated         |
| D . LT Frank Jurs          | Abuse: Lt. Frank Jurs refused to show a search warrant to § 87(2)(b) and § 87(2)(b)          | D . Unsubstantiated         |
| E . SDS David Cheesewright | Abuse: Sgt. David Cheesewright refused to show a search warrant to § 87(2)(b) and § 87(2)(b) | E . Unsubstantiated         |
| F . SDS David Cheesewright | Abuse: Sgt. David Cheesewright refused to provide his name to § 87(2)(b)                     | F . Unsubstantiated         |
| G . LT Frank Jurs          | Abuse: Lt. Frank Jurs refused to provide his name to § 87(2)(b)                              | G . Unsubstantiated         |

### Case Summary

On April 30, 2015, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System on behalf of herself and her daughter, § 87(2)(b).

At approximately 7:15 a.m. on April 30, 2015, a search warrant was executed at the § 87(2)(b) home, located at § 87(2)(b) in Brooklyn (**Allegation A**). § 87(2)(b) boyfriend, § 87(2)(b) was present at the time. The initial entry was made by ESU officers. Once they had secured the location, ESU left and turned the apartment over to several plainclothes officers from the 84<sup>th</sup> Precinct, including Det. Lawrence Hotaling, PO David Uriguen, Lt. Frank Jurs and Sgt. David Cheesewright. As the officers entered, § 87(2)(b) asked Det. Hotaling to view their search warrant. He made no response (**Allegation B**). The precinct officers searched the interior of the apartment, recovering cocaine, heroin and marijuana. § 87(2)(b) was immediately arrested and removed from the apartment, while § 87(2)(b) and § 87(2)(b) remained inside.

Several officers, including Lt. Jurs and PO Uriguen, entered § 87(2)(b) room to search. She asked PO Uriguen for his name, but he did not respond (**Allegation C**). She then asked Lt. Jurs to see a copy of the search warrant. He stated that he did not have a copy of the warrant with him, and that an officer outside of the apartment would show it to her (**Allegation D**). § 87(2)(b) was then moved into the living room with § 87(2)(b). There, § 87(2)(b) asked Sgt. Cheesewright to see a copy of the search warrant. He also stated that an officer outside of the apartment would show it to her (**Allegation E**). No officer ever showed a copy of the warrant to either of the Davises. § 87(2)(b) then asked Sgt. Cheesewright and Lt. Jurs for their names. Neither officer responded (**Allegations F and G**).

The officers remained at the apartment for about an hour. They took § 87(2)(b) into custody, but left § 87(2)(b) in the apartment. § 87(2)(b) was initially told that she would be charged in regards to the drugs found in the apartment. Later, however, § 87(2)(b) stated that the drugs belonged to him alone. § 87(2)(b) was then released from police custody. Her arrest was subsequently voided.

### Mediation, Civil and Criminal Histories

This complaint was ineligible for mediation. Neither § 87(2)(b) nor § 87(2)(b) has filed a notice of claim with the Comptroller's office in regards to this incident (See Board Review: Notice of Claim). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) or § 87(2)(b) (See Board Review: Civilian CCRB Histories).
- Det. Hotaling has been a member of the service for twenty four years and there is one substantiated CCRB allegation against him. In case #9200443, a discourtesy allegation was substantiated against him. Due to the age of the complaint, no disciplinary

recommendation could be found. This is the first refusal to display search warrant allegation made against Det. Hotaling.

- PO Uriguen has been a member of the service for six years and there are no substantiated CCRB allegations against him. This is the first refusal to provide name allegation made against PO Uriguen.
- Lt. Jurs has been a member of the service for ten years and there are three substantiated CCRB allegations against him. In case #2007115888, vehicle stop, frisk and search allegations were substantiated against Lt. Jurs. No disciplinary action was taken against him. This is the first refusal to provide name or refusal to show search warrant allegations made against Lt. Jurs.
- Sgt. Cheesewright has been a member of the service for twenty four years and there are sixteen substantiated CCRB allegations against him.
  - In case #200202002, force, vehicle search and threat of force allegations were substantiated against Sgt. Cheesewright. He was found not guilty at trial.
  - In case #200202912, stop, frisk, vehicle stop and refusal to provide name and/or shield allegations were substantiated against Sgt. Cheesewright. He received instructions.
  - In case #200205206, frisk, vehicle stop, vehicle search and retaliatory summons allegations were substantiated against Sgt. Cheesewright. The charges against him were dismissed.
  - In case #200600042, gun drawn, entry and property damage allegations were substantiated against Sgt. Cheesewright. No disciplinary action was taken against him.
  - This is the first refusal to show search warrant allegation made against Sgt. Cheesewright.

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

During a photo viewing session, § 87(2)(b) identified Det. Hotaling and Sgt. Cheesewright as the officers that she asked to show her the search warrant. During the same session, § 87(2)(b) identified Lt. Jurs and Sgt. Cheesewright as the officers who were asked to show copies of the search warrant.

§ 87(2)(g)

Det. Hotaling stated that the three supervisors (Cpt. Anthony Iemitti, Lt. Jurs and Sgt. Cheesewright) had copies of the warrant during the entry. He denied holding a copy himself. Lt. Jurs stated that either Sgt. Cheesewright or Det. Hotaling had the warrant. He did not recall holding a copy himself. PO Uriguen did not recall who on the entry team was holding the warrant. Sgt. Cheesewright, however, stated that every officer on the entry team was carrying a copy during the entry, himself included.

§ 87(2)(g)

§ 87(2)(g)

### **Allegations Not Pleaded**

In her sworn statement, § 87(2)(b) stated that while she was sitting in the living room, she asked several officers for their names, stating that she called out to numerous officers as they moved throughout the apartment. These officers either ignored her request, or replied, “No.” § 87(2)(b) identified one of these officers in her photo viewing session as Sgt. Cheesewright. She did not provide individual descriptions of the other officers, or describe which areas of the apartment they were moving through. § 87(2)(b) only alleged that § 87(2)(b) asked one officer, whom she identified in her photo viewing as Lt. Jurs, for his name during the entry. She stated that Lt. Jurs explicitly refused to provide his information to § 87(2)(b).

While the civilians alleged that Sgt. Cheesewright and Lt. Jurs were engaged in conversation with § 87(2)(b) in the living room when she made her request, there is no indication that she was directly interacting with any of the other officers. § 87(2)(g)

### **Allegation A –Abuse of Authority: Officers entered and searched § 87(2)(b), in Brooklyn.**

It is undisputed that ESU officers forcibly entered the § 87(2)(b) apartment. It is also undisputed that after ESU had secured the apartment, officers from the 84<sup>th</sup> Precinct entered and searched the location. The officers were in possession of a valid search warrant for the apartment at the time of the entry (See Board Review: Search Warrant). NY Criminal Procedure Law §690.50 states that officers may forcibly enter a location pursuant to a valid search warrant (See Board Review: Legal Reference). Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

### **Allegation B –Abuse of Authority: Det. Lawrence Hotaling refused to show a search warrant to § 87(2)(b)**

### **Allegation D –Abuse of Authority: Lt. Frank Jurs refused to show a search warrant to § 87(2)(b)**

### **Allegation E –Abuse of Authority: Sgt. David Cheesewright refused to show a search warrant to § 87(2)(b) and § 87(2)(b)**

§ 87(2)(b) was interviewed at the CCRB on May 11, 2015. She also provided a brief follow-up statement after a photo viewing session on July 28, 2015 (See Board Review: § 87(2)(b) Statements). § 87(2)(b) initially alleged that after she and § 87(2)(b) were moved to the living room, she asked Sgt. Cheesewright to see a copy of the search warrant. He replied that she would be shown the warrant by another officer outside of the apartment. She was never shown any such document. During her follow-up statement, § 87(2)(b) further alleged that she had

asked Det. Hotaling to see a copy of the search warrant when the precinct officers first entered the apartment. Det. Hotaling made no response to this request.

§ 87(2)(b) was interviewed by telephone on June 15, 2015 (See Board Review: § 87(2)(b) Statements). She also stated that § 87(2)(b) asked Sgt. Cheesewright to see the search warrant while in the living room. § 87(2)(b) further alleged that she herself had asked Lt. Jurs to see a copy of the search warrant earlier in the incident, while Lt. Jurs and PO Uriguen were searching her bedroom. Lt. Jurs responded that an officer outside of the apartment would show her the warrant, but she was never shown the document.

Det. Hotaling was interviewed on July 2, 2015. Sgt. Cheesewright was interviewed on August 3, 2015. Lt. Jurs was interviewed on August 13, 2015. PO Uriguen was interviewed on August 18, 2015 (See Board Review: MOS Statements). The officers denied hearing either civilian ask to see copies of the search warrant during the entry. Sgt. Cheesewright stated that Det. Hotaling showed the § 87(2)(b) a copy of the search warrant while they were in the living room, but did not know if he did this on his own initiative or in response to a request. None of the other officers recalled the search warrant being displayed at any point. None of the officers recalled the § 87(2)(b) being told that an officer outside of the apartment would show them the warrant.

§ 87(2)(g)  
Therefore,  
it is recommended that **Allegations B, D and E** be closed as **unsubstantiated**.

**Allegation C –Abuse of Authority: PO David Uriguen refused to provide his name to**

§ 87(2)(b)  
**Allegation F –Abuse of Authority: Sgt. David Cheesewright refused to provide his name to**

§ 87(2)(b)  
**Allegation G –Abuse of Authority: Lt. Frank Jurs refused to provide his name to** § 87(2)(b)

§ 87(2)(b) alleged that she asked PO Uriguen for his name while he was searching her bedroom, and that he made no response to the request. § 87(2)(b) and § 87(2)(b) both alleged that § 87(2)(b) asked officers for their names in the living room as well. § 87(2)(b) identified one of these officers as Sgt. Cheesewright, stating that he either ignored the request or responded, “No.” § 87(2)(b) identified another officer as Lt. Jurs, and stated that he replied, “Don’t worry about it.” All of the officers interviewed denied that the § 87(2)(b) asked any officers for their names at any time during the incident. § 87(2)(g)

Therefore, it is recommended that **Allegations C, F and G** be closed as **unsubstantiated**.

Pod:

|               |           |       |       |
|---------------|-----------|-------|-------|
| Investigator: | _____     | _____ | _____ |
|               | Signature | Print | Date  |

|             |                 |       |       |
|-------------|-----------------|-------|-------|
| Pod Leader: | _____           | _____ | _____ |
|             | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Attorney: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |